

- ii. riot, civil commotion, strike, lockout, stoppage or restraint of labour from whatever cause arising whether partial or general ; or
- (d) for any indirect or consequential loss or damage or for loss of particular market.

Comments

Section 102 provides for exoneration from liability of railway administration in cases specified therein.

Railway is liable for compensation for non-delivery – The Tribunal, therefore, rightly held that Sec. 77-B of the Old Act of 1890 is not applicable in case of non-delivery and hence the railway is liable for non-delivery.

The Railway, however, was exonerated for partial shortage in 5 bales.

103. Extent of monetary liability in respect of any consignment – (1)
Where any consignment is entrusted to a railway administration for carriage by railway and the value of such consignment has not been declared as required under sub-section(2) by the consignor, the amount of liability of the railway administration for the loss, destruction, damage, deterioration or non-delivery of the consignment shall in no case exceed such amount calculated with reference to the weight of the consignment as may be prescribed, and where such consignment consists of an animal, the liability shall not be exceed such amount as may be prescribed.

(2) Notwithstanding anything contained in sub-section(1), where the consignor declares the value of any consignment at the time of its entrustment to a railway administration for carriage by railway, and pays such percentage charge as may be prescribed on so much of the value of such consignment as is in excess of the liability of the railway administration as calculated or specified as the case may be, under sub-section (1), the liability of the railway administration for the loss, destruction, damage, deterioration or non-delivery of such consignment shall not exceed the value so declared.

- (1) The Central Government may from time to time, by notification, direct that such goods as may be specified in the notification shall not be accepted for carriage by railway unless the value of such goods is declared and percentage charge is paid as required under sub-section(2).

Comments

Section 103 lays down the extent of monetary liability of the railway in respect of loss, destruction, damage, etc. of a consignment.